

M/S Ayesha Steels Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · WRIT - C No. 29679 of 2013 · **Writ dismissed as infructuous; Para 4.20 additional-security challenge not decided.**

HEADNOTE

A challenge to PVVNL's demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, earlier stayed in line with connected petitions, was dismissed as infructuous on the petitioner's statement, without any ruling on the legality of that demand.

FACTUAL SUMMARY

M/s Ayesha Steels Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. The writ was connected with WP No. 30582 of 2009 (M/s Vehina Steels & Alloys) and similar matters. On 24 May 2013 the Court, following the connected interim order, restrained the respondents from demanding additional security without prejudice and allowed three weeks for a counter affidavit. On 12 September 2016 counsel stated the petition had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging the demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement, without any decision on the merits of that demand. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF ADDITIONAL SECURITY UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS LAWFUL

Petition dismissed as infructuous; merits not reached. ¶ 2